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General Comment

The attached response to the Request for Information on the Development of an Artificial Intelligence (AI) Action Plan is submitted on behalf of Utah's Responsible AI Community Consortium, a statewide organization that brings together government, academia, industry, and the community to collectively and symbiotically engage in the responsible development and use of AI to advance discoveries, drive innovation and economic growth, create an AI-savvy workforce, increase AI literacy, and foster societal good across Utah and the intermountain west region, as well as nationally and globally.

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Attachments

Utah-RAI-CC-Response to the AI Action Plan RFI

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Response to the Request for Information on the Development of an Artificial Intelligence (AI) Action Plan submitted by [Utah's Responsible AI Community Consortium](#).

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Introduction

Recognizing the essential role of artificial intelligence (AI) in national security, economic prosperity, and scientific advancement, and the critical importance of ensuring US leadership in AI, the State of Utah is catalyzing an AI-driven innovation ecosystem that brings together partners from government, academia, and industry to drive research and development, foster innovation and entrepreneurship, and create an AI-savvy workforce. This innovation ecosystem builds on three foundational principles: **Responsible Innovation**, **Public-Private Partnerships**, and **Accessible Innovation Infrastructure**. Utah's AI strategy can inform a national priority policy action plan for AI to sustain and enhance America's AI dominance to promote national security, economic competitiveness, and societal wellness and prosperity. This response highlights policies, mechanisms, and experiences underlying Utah's blueprint for an AI-enabled future.

AI Initiatives and Activities across Utah

Office of AI Policy

This [Utah Office of AI Policy](#) is the first-in-the-nation office for AI policy, regulation, and innovation. It aims to strengthen trust in AI activities in Utah through data-driven policy, timely regulatory adjustments, and innovation-enabling regulatory relief. Utah's early creation of this office signifies its commitment to being at the forefront of AI policy and collaborative regulation.

The office consults with businesses, academic institutions, and other stakeholders to facilitate dialogue on regulatory proposals to foster innovation and safeguard public safety. The office has the authority to craft regulatory mitigation agreements that enable

the deployment of AI in novel ways. Utah is setting a new standard through these proactive measures and leading the nation in AI innovation and regulation.

Utah State Board of Education

The [Utah State Board of Education](#) (USBE) provides guidance to local education agencies (LEAs) through the [Artificial Intelligence Framework for Utah P-12 Education: Guidance on the Use of AI in Our Schools](#). This guidance document explores many current issues facing students, teachers, and parents in schools across Utah. It applies to all students, teachers, staff, administrators, and third parties who develop, implement, or interact with AI technologies used in our education system where permitted by local policy. It covers all AI systems used for education, administration, and operations, including, but not limited to, generative AI models, intelligent tutoring systems, conversational agents, automation software, and analytics tools. The guidance complements existing policies on technology use, data protection, academic integrity, and student support.

USBE has a Steering Committee for AI (SCAI) that monitors AI in education for potential benefits and to safeguard students and educators from harm created by AI. USBE has hired an AI Education Specialist and supported professional development for teachers and administrators statewide through partnerships and grant funding. USBE has also supported building and upscaling CI through [the Digital Teaching and Learning \(DTL\) grant program](#), funded by the Utah Legislature. This grant provides any publicly funded local education agency with funds to improve infrastructure, pay support staff, and provide hardware and software solutions for classrooms.

The Utah STEM Action Center supported a co-programmed two-day professional development for three cohorts of teachers across the state. The USBE AI in K-12 Education program, funded by Intermountain Healthcare, supports over 2,200 teachers in learning about AI and applying it to their classrooms.

Higher Education

The [Utah System of Higher Education](#) (USHE) is governed by the Utah Board of Higher Education and comprises Utah's 16 public colleges and universities. Several of these universities have developed focused initiatives, centers, and institutes to support AI innovation. Housed within USHE, Talent Ready Utah optimizes efforts made by education and industry partnerships to build a highly skilled workforce while providing students with increased career and education opportunities. In 2023, Talent Ready Utah funded more than \$1.8M in projects to grow Utah's deep tech workforce.

University of Utah (U of U): The [One-U Responsible Artificial Intelligence Initiative](#) (One-U RAI), launched in 2023 via a \$100 million university investment, is led by the U of U's Scientific Computing and Imaging (SCI) Institute. The initiative brings together RAI transdisciplinary research expertise, statewide advanced cyberinfrastructure, education and workforce development, partnerships, and community engagement. It aims to catalyze responsible AI innovation and application to address scientific and societal grand challenges while promoting fairness, accountability, and transparency. One-U RAI envisions a future where AI is responsibly leveraged to address critical local, regional, and global challenges and to benefit humanity.

Utah State University (USU): The USU [Data Science and AI](#) (DSAI) Center aims to be a hub at USU for students, faculty, staff, and external stakeholders interested in data science, machine learning, and AI. The hub's priorities include fostering faculty collaborations across campus, connecting industry partners with faculty, staff, and students, and becoming a state resource in data science and AI research.

Utah Valley University (UVU): The UVU [Applied Artificial Intelligence Institute](#) focuses on integrating generative AI into the university's academic and administrative programs – its ultimate goal is to equip students with the skills necessary to thrive in a rapidly evolving job market. The institute provides a living laboratory and model for AI in higher education. UVU recently earned the prestigious UNESCO Chair designation to Drive Global AI-Powered Education.

Responsible AI Community Consortium

Utah's [Responsible AI Community Consortium](#) (RAI-CC), catalyzed by U of U's One-U RAI, aims to create a framework where academia, government, industry, and the community collectively and symbiotically engage in the responsible development and use of AI to advance discoveries, drive innovation, create an AI-savvy workforce, increase AI literacy, and foster societal good across Utah and the region, as well as nationally and globally. Through collaborative efforts, the consortium will develop and test proof of concepts to demonstrate the practical application of responsible AI principles, serving as a bridge between theory and impactful real-world solutions. Central to this mission is the cultivation of AI Ambassadors—leaders who promote responsible AI practices, foster collaboration across sectors, and enhance awareness and understanding of AI's societal impact. Synergies and collaborations enabled by the RAI-CC framework will naturally catalyze the culture change needed to responsibly advance AI and its uses.

Utah Education and Telehealth Network (UETN)

The [Utah Education and Telehealth Network](#) (UETN) is a nationally acclaimed organization, unifying the extensive services of the Utah Education Network (UEN) and

the Utah Telehealth Network (UTN), responsible for a robust infrastructure of broadband and broadcast technologies for education and telehealth statewide. UETN's network links over 2,000 K-12 schools, higher education institutions, public libraries, and telehealth sites in the state's urban, suburban, and rural areas. UEN provides access to tools and free professional development to assist Utah educators in effectively using technology in the classroom, including for AI, often leveraging public-private partnerships. For example, UEN has supported the rollout of AI tools in all publicly funded Utah schools, including rural schools, through training for teachers and IT professionals.

Utah - NVIDIA Partnership

The Utah Governor's Office of Economic Opportunity, the Speaker of the House of Representatives, the President of the Senate, the Office of Artificial Intelligence Policy, the Utah System of Higher Education, and colleges and universities across Utah recently signed a [memorandum of understanding with NVIDIA](#), a global leader in artificial intelligence, to strengthen the state's workforce training and research in AI and advanced technology. This strategic partnership will enhance Utah's technology-based workforce training and economic development and democratize AI access across communities.

Principles Underlying Utah's AI Strategy

The overarching goal of Utah's AI strategy is to nucleate a unique AI innovation ecosystem based on its foundational principles of *Responsible Innovation*, *Public-Private Partnerships*, and *Accessible Innovation Infrastructure* supported by an AI-savvy workforce. Education and development resources and practices, from K-12 to industry professionals, are needed to equip Utahns with the knowledge and skills necessary to deploy and use AI effectively and navigate associated non-technical challenges.

Responsible Innovation

Responsible innovation aims to balance the ability to innovate in AI and its uses with the need for policies, regulations, and protections to ensure its responsible advancement. This principle underlies all aspects of the AI innovation ecosystem, including research and innovation, education and workforce development, policy and governance, and community engagement. Essential elements of Utah's responsible innovation strategy are as follows.

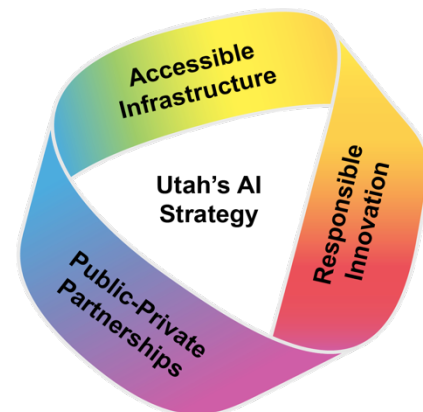


Figure Field 1: Utah's AI strategy is built on three foundational principles: Responsible Innovation, Public-Private Partnerships, and Accessible Innovation Infrastructure, supported by a skilled, AI-savvy workforce.

Learning Laboratory

Utah's Office of Artificial Intelligence Policy oversees the AI learning laboratory program. The program aims to create thoughtful regulatory solutions for AI applications while encouraging innovation and protecting consumers. It fosters collaboration with Utah-based AI companies and key stakeholders, including industry experts, academics, regulators, and community members.

Regulatory Mitigation

Under Title 13, Chapter 72 of the Utah State Code, the Office of Artificial Intelligence Policy is authorized to offer regulatory mitigation agreements to Utah-based AI companies. This program is designed to support businesses introducing AI technologies to the marketplace by addressing regulatory challenges on a case-by-case basis. Engaging with the program includes understanding specific use cases and their impacts, exploring possible regulatory relief, signing agreements (examples at <https://ai.utah.gov/agreements/>), and executing the innovation. Through participation in the regulatory mitigation process, companies receive one or more of the following benefits:

- regulatory exemptions for activities that may benefit the state in the future
- capped penalties for regulatory violations
- cure periods to address compliance issues without immediate penalties
- safe harbors for adhering to negotiated rules and standards
- regulatory certainty through tailored mitigation agreements.

Public-private Partnerships

Public-private partnerships are essential for harnessing AI's tremendous potential for national security, innovation, and scientific advancement. Industry and academic research complement each other—product advancements and market forces drive the former, while the latter can explore novel approaches and diverse methods.

An AI research and development portfolio that combines industry and academic innovations and informs government policies and regulations through public-private partnerships is critical and an integral part of Utah's AI strategy. Specifically, this strategy aims to leverage its unique RAI-CC to catalyze public-private partnerships to advance responsible AI development and use and bring together member institutions that are actively committed to the following pillars:

- **Research and Innovation:** Advance AI research and innovation with an emphasis on the responsible, transdisciplinary exploration, development, and application of technology. Integrate societal implications to ensure technologies align with moral and societal values.

- **Education and Workforce Development:** Grow workforce development resources and practices to equip K-12 and higher education students, researchers, and industry professionals with the knowledge and skills necessary to deploy and use AI effectively and navigate its socio-technical challenges.
- **Policy and Governance:** Advocate for responsible AI practices that are business-friendly and promote democratization. Collaborate with practitioners at the local, national, and international levels to help influence and shape the regulatory landscape and general ecosystem surrounding AI technologies and their use, including the management of intellectual property.
- **Community Engagement:** Actively engage the community to raise awareness about AI and responsible AI practices. Foster a transparent and inclusive dialogue about the responsible use of AI to ensure that AI technologies benefit society.

Accessible Innovation Infrastructure

Responsible progress at the current frontiers of AI is tied to access to large amounts of computational power and data to support analyzing data, training new models and verifying their applicability to critical problems, and developing securely and responsibly running new AI-based services. A capable and readily accessible advanced infrastructure ecosystem built on public-private partnerships is essential for driving research and innovation and catalyzing entrepreneurship, including serving the early AI development needs of small and medium businesses. Training an AI-savvy workforce requires education and development resources for K-12, higher education, and industry professionals to equip all Utahns with the knowledge and skills necessary to deploy and use AI effectively and navigate associated non-technical challenges.

Cyberinfrastructure Innovation Ecosystem

Utah's cyberinfrastructure (CI) ecosystem will integrate computing, storage, and networking resources, along with the necessary energy infrastructure, software and data, and expertise and support services to leverage cutting-edge AI technologies and support all AI researchers, entrepreneurs, practitioners, and educators across the state. This CI ecosystem is founded on public-private partnerships and gives Utah a competitive advantage, attracting business, spurring economic growth, and providing immediate societal benefits through the responsible use of AI technologies and applications. The CI ecosystem will open new opportunities for advancement across all fields and disciplines, driving research and catalyzing innovation. It will also provide a platform for supporting entrepreneurship, for example, via hosted "learning laboratories" and training an AI-savvy workforce.

Utah Office of Energy Development

Energy is the foundation on which modern society is built and an essential component of an AI infrastructure. When we learned to harness energy, we traded calories spent on subsistence for electrons that unleashed human potential on a scale never seen before. We need significantly more power to meet current and future energy needs. Utah is committed to doubling its reliable energy production in the next 10 years. Operation Gigawatt will focus on four key areas to create an abundance of energy.

- Increasing transmission capacity so more power can be placed on the grid and moved to where needed.
- Expanding and developing more energy production. This includes keeping what we currently have and creating new sustainable sources.
- Enhancing Utah's policies to enable clean, reliable energy like nuclear and geothermal.
- Investing in Utah innovation and research that aligns with our energy policies.

Geothermal and nuclear energy are promising new energy resources the state is investigating.

Suggested AI Policy Actions

Based on Utah's AI strategy and experiences from its unique AI innovation ecosystem for AI, we recommend policy actions. These suggestions build on the foundational principles of *Responsible Innovation (RI)*, *Public-Private Partnerships (PPP)*, and *Accessible Innovation Infrastructure (AII)*. These suggested actions are aimed at fostering US leadership in responsible AI and AI-drive economic growth:

- Create a federal learning laboratory to provide a sandbox environment in which companies can deploy novel AI applications with minimal risk of regulatory consequences. The sandbox program could facilitate shared understanding and norming around AI governance in particular applications. Incentivize and fund public-private partnerships for AI development, research, translation, and application (RI, PPP).
- Empower state regulatory experiments and provide flexibility on regulations in AI-related areas to enable innovation, particularly in areas where there is partial federal preemption, such as financial services and healthcare; develop the framework for states to engage nationally and provide policy support and best practices around AI, including AI rollouts, data privacy, education, and safeguarding sensitive data (RI, AII).
- Promote the development of consensus AI standards and best practices through public-private partnerships; clarify copyright and intellectual property policies and regulations to support continued AI innovation (RI, PPP).
- Prioritize the deployment of a widely accessible, state-of-the-art national AI cyberinfrastructure ecosystem that leverages growing private-sector investments

and federates state and institutional investments in compute, data, software, and expertise; develop a national strategy and policy for managing and sharing AI-ready data; ensure scalable support services and access to expertise to ensure its broad and effective use (RI, PPP, All).

- Stimulate responsible energy production to support growth in technological development through permitting reform (All).
- Give states the freedom to leverage federal funding (e.g., block grants) for restructuring education and training, including adult education, and to allow organizations to provide effective professional development to upskill all layers of educational organizations (RI, All).